

ISMUN 4.0

Intra School Model United Nations
Nath Valley School - Chhatrapati Sambhajinagar

BACKGROUND GUIDE

LOK SABHA

The House of the People



Agenda

*Deliberations on the Right to Peaceful Assembly, Civil Liberties, and the
Maintenance of Public Order across States and Union Territories*

Contents

1. Letter from the Executive Board	3
2. Introduction to the Committee	4
3. Rules of Procedure	7
4. Introduction to the Agenda.....	14
5. The Agenda in Depth	18
6. Timeline of Key Events	32
7. Treaties, Resolutions and Key Instruments	36
8. Case Study I: Jantar Mantar and the Sansad Chalo March (2026)	39
9. Case Study II: The Farmers' Protests (2020–21 and 2024–25).....	43
10. Questions a Resolution Must Answer (QARMA).....	45
11. Bibliography	47
12. Further Readings.....	52

1. Letter from the Executive Board

Hon'ble Members,

It is our pleasure to welcome you to the Lok Sabha of ISMUN 4.0, Nath Valley School.

For this conference, you will not represent countries. You will sit as Members of Parliament of the Republic of India, representing a constituency, a party and, above all, the Constitution.

Our agenda, “Deliberations on the Right to Peaceful Assembly, Civil Liberties, and the Maintenance of Public Order across States and Union Territories,” brings you to one of the most important questions in a democracy: how do we protect the right to protest while maintaining peace and public order?

This will not be a committee of prepared speeches alone. This House will move with crisis at times. Developments may change the situation at any moment, and you will be expected to question, debate, negotiate and make decisions accordingly. Know the Member you represent. Know their party, their record and their responsibilities. Most importantly, know the Constitution.

This guide will give you the foundation. What you do with it will define your performance in the House. We expect strong debate, sharp questions and, above all, the dignity that the Lok Sabha deserves.

We look forward to seeing you in the House.

Until October — Satyameva Jayate | Jai Hind

Akshada Patil
The Speaker

Ishaan Muley
Deputy Speaker

Sammar Pawar
Deputy Speaker

The Executive Board | Lok Sabha – ISMUN 4.0

2. Introduction to the Committee

2.1 The Lok Sabha: The House of the People

The Parliament of India consists of the President and two Houses: The Council of States (Rajya Sabha) and the House of the People (Lok Sabha) (Article 79). The Lok Sabha is the directly elected House. Under Article 81, it may have up to 530 Members chosen from the States and up to 20 from the Union Territories; at present, 543 Members are elected from single-member territorial constituencies on the basis of universal adult franchise. Unless dissolved sooner, the House continues for five years from the date of its first meeting (Article 83(2)). The present House, the Eighteenth Lok Sabha, was constituted after the general election of 2024.

The Executive Board presides over proceedings, interprets and enforces the rules, maintains order, rules on points of order and decides finally whether a Bill is a Money Bill (Article 110(3)). In this committee, the Executive Board will exercise these functions.

2.2 Functions of the House

- **Legislation.** Together with the Rajya Sabha, the Lok Sabha makes laws on subjects in the Union List and the Concurrent List, and for the Union Territories on any subject (Article 246(4)).
- **Control over finance.** Money Bills may be introduced only in the Lok Sabha (Articles 109 and 110), and demands for grants, including those for the police forces and internal security, are voted on by the Lok Sabha (Article 113).
- **Executive accountability.** The Council of Ministers is collectively responsible to the Lok Sabha (Article 75(3)). Question Hour, Zero Hour, Calling Attention notices, Adjournment Motions and the Motion of No-Confidence are the House's instruments for holding the Government to account.
- **Deliberation and representation.** The House is the national forum in which grievances, including those that spill onto the streets, are expected to be voiced, debated and resolved.
- **Constituent function.** Amendments to the Constitution may originate in either House and require special majorities (Article 368).

2.3 Why This Agenda Belongs in the Lok Sabha – (please read about union list | concurrent list | state list and their entries before reference)

At first glance, protest and policing may appear to be matters for the States alone: ‘Public order’ (Entry 1) and ‘Police’ (Entry 2) are both in the State List of the Seventh Schedule. In practice, Parliament’s role is substantial:

- Criminal law and criminal procedure are Concurrent List subjects *(Entries 1 and 2). The Bhartiya Nyaya Sanhita, 2023 and the Bhartiya Nagarik Suraksha Sanhita, 2023, which define unlawful assembly and rioting and confer prohibitory and dispersal powers, are Acts of Parliament.
- Preventive detention is shared between the Union List (Entry 9) and the Concurrent List (Entry 3), and the National Security Act, 1980 is a central law.
- The deployment of the Union’s armed forces, including the Central Armed Police Forces, in aid of the civil power is a Union subject (Union List, Entry 2A), and the Union has a constitutional duty to protect every State against internal disturbance (Article 355).
- Telecommunications, and therefore internet shutdowns, fall under Union List Entry 31; suspensions are governed by the Telecommunications Act, 2023.
- Parliament legislates for the Union Territories. The Delhi Police answers to the Union Ministry of Home Affairs because ‘public order’ and ‘police’ lie outside the Delhi Legislative Assembly’s competence (Article 239AA(3)(a)); in Jammu and Kashmir, the same two subjects lie outside the elected Assembly’s domain under the Jammu and Kashmir Reorganisation Act, 2019; and Ladakh has no legislature at all. For residents of these territories, the Lok Sabha, to which the Union Territories together elect 19 of the 543 Members, is the principal elected body that can hold their police to account.
- The House’s own committees have examined the subject. The Standing Committee on Communications and Information Technology, for instance, reported on internet suspensions in December 2021.

2.4 Composition of This Committee

Each delegate represents a sitting Member of the Eighteenth Lok Sabha, as allotted. Some Members may hold ministerial portfolios such as Home Affairs, Law and Justice, Communications or Education; they will be expected to answer for their ministries during Question Hour and to exercise their portfolio powers during crisis. Before the conference, every Member should know:

- the party and alliance they belong to, and the party's stated positions on policing, protest and civil liberties;
- their constituency, its State or Union Territory, and recent protests, prohibitory orders or internet suspensions affecting it;
- their own record, including questions asked, debates joined and votes cast on related Bills; and
- the constitutional limits of any portfolio they hold.
-

2.5 Nature of the Committee: Parliament with Crisis

The committee combines regular parliamentary business (questions, debate, motions and legislation) with a crisis track. The Executive Board may introduce developments that change the situation on the ground at any time, and Members will respond through directives, statements and emergency legislation as described in the Rules of Procedure. The outputs of the committee may include one or more Bills, resolutions of the House and a record of executed directives.

2.6 Artificial Intelligence and Delegate Preparedness

Artificial Intelligence can assist delegates during preparation, but excessive reliance on it can weaken the quality of parliamentary debate. AI-generated information may be inaccurate, outdated or lack the context necessary to understand legislation, Members of Parliament or political positions.

More importantly, a delegate representing a member must be able to **think and respond independently**. Over-reliance on AI can lead to generic arguments that fail to reflect the Member's actual record, constituency or political position.

Delegates are therefore expected to use AI, where permitted during preparation, only as an aid to research and understanding. **The responsibility for accuracy, judgement and representation ultimately rests with the delegate.**

AI may assist preparation; it cannot replace parliamentary judgement.

3. Rules of Procedure

These Rules of Procedure are modelled on the Rules of Procedure and Conduct of Business in Lok Sabha and adapted for a Model United Nations setting. Where a rule below mirrors a rule of the actual House, the corresponding rule is noted in brackets for reference. The Executive Board's interpretation of these rules is final, and the Board may modify or suspend any rule in the interest of the committee, particularly during crisis.

3.1 General Rules

- **Language.** The introduced committee is bilingual in nature and hence, usage of Hindi and English is officially allowed during committee time. But the standards of both should be acceptable for formal proceedings
- **Forms of address.** All remarks are addressed to the Chair ("Hon'ble Speaker") and the Deputy Speakers (Hon'ble Deputy Speakers). Members refer to one another in the third person, for example "Hon'ble/ "Manniya Mahoday/Mahodaya" – xyz portfolio "
- **Decorum.** Members may not interrupt a speaker except through a permitted Point and may not use unparliamentary language. The Speaker may order such words to be expunged from the record (modelled on Rule 380).
- **Quorum.** The committee may conduct business when at least one-third of its Members are present. (In the actual House, the quorum is one-tenth of the total membership under Article 100(3).)
- **Discipline.** The Executive Board may warn a Member, direct a grossly disorderly Member to withdraw for the rest of the session, or "name" a Member who persistently disregards the EB, after which the Member may be suspended for a period set by the Executive Board (modelled on Rules 373, 374 and 374A).
- **Devices and sources.** Devices may be used only as permitted by the Secretariat. Members must be ready to produce the source of any fact they state when asked by the Executive Board

3.2 Roll Call

At the start of every session the Speaker calls the roll. A Member may answer "**Present**" or "**Present and Voting**". A Member who answers "Present and Voting" may not abstain on any substantive vote during that session.

3.3 Order of Business

Unless the Executive Board directs otherwise, a typical session proceeds as follows:

1. Roll Call
2. Question Hour
3. Zero Hour
4. General Discussion (General Speakers' List)
5. Short Duration Discussions (moderated debate) and Consultations of the House (unmoderated debate), as moved by Members
6. Legislative Business: introduction, consideration and passing of Bills

Crisis updates may be introduced by the Executive Board at any point and take precedence over all other business.

3.4 Question Hour (modelled on Rules 32 to 54)

- Members submit written questions to the Chair, addressed to a Minister (a Member holding the relevant portfolio).
- **Starred questions** are answered orally. The questioner may ask up to two supplementary questions, and the Executive Board may allow other Members to ask supplementaries.
- **Unstarred questions** receive written answers, which the Executive Board may circulate.
- **Short notice questions** on matters of urgent public importance may be admitted if the Minister agrees to answer at short notice.
- *Ministers must answer truthfully. Knowingly misleading the House may be raised as a breach of privilege.*

3.5 Zero Hour

Zero Hour follows Question Hour. With prior written notice to the Speaker, a member may raise a matter of urgent public importance for up to one minute. No reply from the Government is required and no debate follows. The Executive Board decides which notices are admitted.

3.6 General Discussion (General Speakers' List)

- Once the agenda is taken up, the Executive Board opens a General Speakers' List. Members are added by raising placards or by sending a chit to the E.B.

- The default speaking time is 90 seconds, which the committee may change by motion.
- A Member who finishes early may yield the remaining time to the Chair, to Points of Information (questions from other Members) or to another Member (only with due mutual permission by the latter).
- The committee moves to legislative business when the List is almost exhausted or when debate is closed (NOT suspended) by motion.

3.7 Points

- **Point of Personal Privilege.** Raised when a Member's ability to participate is impaired, for example by inaudibility. It may interrupt a speaker only on grounds of audibility.
- **Point of Order** (modelled on Rule 376). Raised when a Member believes the rules are being improperly applied. It may not interrupt a speaker, and the Speaker's ruling is final.
- **Point of Parliamentary Inquiry.** A question to the Chair about the rules of procedure. It may not interrupt a speaker.
- **Point of Information.** A question to a speaker who has yielded time to Points of Information, asked through the Chair and phrased as a question.
- **Right of Reply.** Where a Member's personal or party integrity has been impugned by another Member, the Speaker may grant a brief right of reply. The decision rests entirely with the Executive Board.

3.8 Motions

Unless stated otherwise, a motion must be seconded and passes by a simple majority of Members present and voting. The Executive Board may rule any motion dilatory or out of order.

Motion	Purpose	Requirement
Short Duration Discussion (moderated debate) [Rule 193]	Focused debate on a sub-topic. The mover specifies the topic, the total time (up to 20 minutes) and the speaking time (up to 90 seconds).	Simple majority
Consultation of the House (unmoderated debate)	Informal lobbying and drafting for a specified time (up to 20 minutes).	Simple majority

Motion	Purpose	Requirement
Calling Attention [Rule 197]	Calls a Minister's attention to a matter of urgent public importance. The Minister makes a brief statement, followed by up to three clarificatory questions.	Consent of Executive Board
Adjournment Motion [Rules 56 to 63]	Sets aside regular business to discuss a definite matter of recent occurrence and urgent public importance. Its adoption is treated as a censure of the Government.	Support of one-fifth of Members present; simple majority to adopt
No-Confidence Motion [Rule 198] (<i>ONLY BASED ON DISCRETION OF THE EXECUTIVE BOARD</i>)	Expresses want of confidence in the Council of Ministers. If adopted, the Ministry must resign; the consequences within the crisis are determined by the Executive Board.	Executive Board's admission; support of one-fifth of Members present; simple majority to adopt
Privilege Motion [Rule 222]	Raises a breach of parliamentary privilege, such as a Minister knowingly misleading the House.	Speaker must find a prima facie case
Motion to Extend	Extends the current discussion or consultation.	Simple majority
Motion to Close Debate	Ends discussion on the current item and moves to voting.	Two-thirds majority
Motion to Suspend or Adjourn the Sitting	Suspends the session for a break or ends it for the day.	Simple majority; EB's discretion
Division	A recorded vote by show of placards, demanded after a voice vote.	Any Member may demand; EB's discretion

Order of precedence. When several motions are raised together, they are considered in this order: Motion to Adjourn the Sitting; Motion to Suspend the

Sitting; Adjournment Motion; No-Confidence Motion; Motion to Close Debate; Consultation of the House; Short Duration Discussion (longest total time first); Motion to Extend. Calling Attention and Privilege motions are taken up at the Executive Board's discretion.

3.9 Walkout

A Member or group of Members may walk out as a mark of protest after informing the Executive Board. Members who walk out may not vote on any question decided in their absence and must return when recalled by the Executive Board. The Speaker may treat repeated or frivolous walkouts as disorderly conduct.

The allowance of the following procedure is approved in actual parliament discussions BUT on this occasion – decisions on walkouts are COMPLETELY UNDER THE DISCRETION OF THE EXECUTIVE BOARD and PERMISSIONS FROM THE AUTHORITIES / SECRETARIAT

3.10 Legislative Business: Bills - (*may be allowed over the Executive Board's discretion*)

Types and requirements

- A **Government Bill** is introduced by a Minister; any other Member may introduce a **Private Member's Bill**.
- A draft Bill needs at least two and not more than four sponsors, and signatories amounting to at least one-fifth of the Members present. Signing a draft signals support for its discussion, not a commitment to vote for it.
- Every draft must be approved by the Executive Board for format before it is introduced.

Format of a Bill

A Bill should contain (a) a short title and year; (b) a Statement of Objects and Reasons; (c) definitions; (d) numbered operative sections and sub-sections; and, where relevant, (e) a financial memorandum and schedules. Every section should identify who is empowered or obliged to act, and the Statement of Objects and Reasons should identify the constitutional provision under which Parliament claims competence.

Stages

1. **First Reading (Introduction).** A sponsor moves for leave to introduce the Bill and summarises its objects. If leave is opposed, one speaker for and one against may speak for up to one minute each before the vote on leave.

2. **Second Reading (Consideration).** The House first discusses the principles of the Bill and then considers it clause by clause. Amendments are moved at this stage.
3. **Amendments.** An amendment accepted by all sponsors is “friendly” and is incorporated without a vote. Any other amendment is “unfriendly” and is put to vote, passing by simple majority. Amendments to amendments are not permitted.
4. **Third Reading (Passing).** The motion “that the Bill be passed” is put to vote. A Bill passes by a simple majority of Members present and voting. A Bill that seeks to amend the Constitution requires a majority of the total membership of the committee and a two-thirds majority of Members present and voting, mirroring Article 368.

If more than one Bill is introduced, the Bills are considered in order of submission. Once a Bill is passed, other Bills on the same subject are not put to vote.

Voting

Votes are first taken by voice (“Present and Voting” / “Present” / “Abstain”). If the Executive Board’s decision is challenged, a Division is held by show of placards (on discretion). On procedural matters every Member present must vote; on substantive matters, Members who answered “Present” may abstain.

Please Note – Even if abstaining is accepted and deemed as parliamentary. This committee is simulated for learning purposes and thus – only absent members will be marked as “abstained”

3.11 Crisis Procedure

- **Crisis updates.** The Executive Board may introduce news flashes, official communications, intelligence inputs or court orders at any point. An update may suspend ongoing business.
- **Directives.** Members act through written directives addressed to the Executive Board. An **Individual (Portfolio) Directive** is issued by one Member within the powers of their office; a **Joint Directive** is issued by two or more Members pooling their powers; a **Party or Bench Directive** reflects coordinated action by a party or alliance; and a **Directive of the House**, adopted by majority vote, covers actions only the House can take, such as constituting a Joint Parliamentary Committee or requiring a Minister to make a statement.

- **Format.** Every directive should state its title, author or authors, the power relied on (Article, Act or Rule), the objective, the specific actions, the resources required and the expected outcome.
- **Press releases and communiqués.** Members may issue statements to the media or write to State Governments, Union Territory administrations, constitutional bodies and other stakeholders. The Board may publish them.
- **Consequences.** The Board may approve, modify or reject any directive. Directives that are unconstitutional, beyond the author's powers, vague or unrealistic will fail, and every approved action may have consequences in the later update.
- **Time.** Committee time may move faster than real time. The Board will announce any time jump.
- **Emergency sittings.** When an update demands an immediate response, the Executive Board may convene an emergency sitting and suspend the normal order of business.

3.12 Evidence and Sources

Statements of fact may be challenged by the Chair or, through a Point of Order, by another Member. The following sources are considered credible, broadly in descending order of weight:

- Government of India and State or Union Territory government sources, including Gazette notifications, ministry reports and Press Information Bureau releases;
- parliamentary records, including Lok Sabha and Rajya Sabha debates, answers to questions and reports of parliamentary committees;
- judgments and orders of the Supreme Court and the High Courts;
- reports of statutory and constitutional bodies (such as the NHRC, the BPR&D and the NCRB) and of United Nations bodies; and
- reputed news agencies and newspapers (such as PTI, ANI, Reuters and national dailies), which are admissible as supporting material but not as conclusive proof.

AI, Wikipedia, blogs, opinion pieces and social media posts may help orient your research but are not accepted as evidence in committee. Evidence deemed as unofficial – unethical – unrecognized by the Executive Board is unacceptable

4. Introduction to the Agenda

4.1 Reading the Agenda

The agenda contains three commitments that must be held together.

- **The right to peaceful assembly.** Article 19(1)(b) guarantees all citizens the right “to assemble peaceably and without arms”. It protects meetings, rallies, processions, sit-ins, dharnas and vigils, and it is closely tied to the freedoms of speech and expression (Article 19(1)(a)), association (Article 19(1)(c)) and movement (Article 19(1)(d)). As early as 1962, the Supreme Court recognised that a demonstration is itself a form of expression.
- **Civil liberties.** The wider family of freedoms on which protest depends and which public-order measures often touch: personal liberty (Article 21), protection against arbitrary arrest and detention (Article 22), privacy (recognised as a fundamental right in 2017), equality before the law (Article 14) and, increasingly, access to the internet as a medium for speech and trade.
- **The maintenance of public order.** The State’s duty to preserve public peace, safety and tranquillity and to protect the rights of those who are not protesting. “Public order” is the principal ground on which the rights of speech and assembly may be restricted (Articles 19(2) and 19(3)).

The closing phrase, “**across States and Union Territories**“, is equally important. The same constitutional rights are administered by 28 State Governments and 8 Union Territory administrations, each with its own police, protest rules, designated venues and political context. A march that is routine in one city may be banned in another. In the National Capital Territory of Delhi the police answer to the Union Government, while in the neighbouring States they answer to elected State Governments.

4.2 Public Order Is Not the Same as Law and Order

Indian constitutional law distinguishes between three expanding circles. In **Ram Manohar Lohia v. State of Bihar (1966)**, the Supreme Court described “law and order” as the largest circle, “public order” as a smaller circle within it, and “security of the State” as the smallest. Every breach of the peace is a law-and-order problem, but only a disturbance that affects the community at large threatens public order. A restriction justified on the ground of public order must also have a proximate and direct connection with it; a remote, conjectural or far-fetched link is not enough (**Superintendent, Central Prison v. Ram Manohar Lohia, 1960**; **S. Rangarajan v. P. Jagjivan Ram, 1989**).

This distinction is the first tool for evaluating any prohibitory order, internet shutdown or preventive detention. The question is never simply whether a protest is inconvenient, but whether a specific restriction is necessary and proportionate to a real threat to public order.

4.3 Why the Agenda Matters Now

- **New criminal laws.** Since 1 July 2024, the Bhartiya Nagarik Suraksha Sanhita (BNSS) has replaced the Code of Criminal Procedure. The familiar “Section 144” prohibitory order is now **Section 163 of the BNSS**, and the Indian Penal Code has been replaced by the Bhartiya Nyaya Sanhita (BNS).
- **A new telecom regime.** Internet suspensions are now governed by Section 20 of the Telecommunications Act, 2023 and the Telecommunications (Temporary Suspension of Services) Rules, 2024. India nonetheless recorded 65 shutdowns in 2025, the highest number of any democracy, according to the digital-rights group Access Now.
- **A wave of high-profile agitations.** Recent examples include violence in Leh (Ladakh) in September 2025, the Maratha reservation agitation that brought parts of Mumbai to a standstill in August and September 2025, and the student protests at Jantar Mantar and the “Sansad Chalo” march of July 2026.
- **Live judicial scrutiny.** As of September 2026, the Supreme Court is hearing a batch of petitions arising from the July 2026 protests, including pleas for pan-India guidelines on protests, and a court-appointed committee is examining allegations about the use of force. The House may choose to legislate before, alongside or after the Court.

4.4 Key Terms

Term	Meaning
Peaceful assembly	An intentional, temporary gathering of people for a common expressive purpose, whether static (a sit-in) or moving (a march). International law also recognises assemblies that take place online.

Term	Meaning
Unlawful assembly	Under Section 189 of the BNS, an assembly of five or more persons whose common object is, among other things, to overawe the Government by criminal force, to resist the execution of any law, or to commit mischief, criminal trespass or another offence. A lawful assembly can become unlawful if its conduct changes.
Prohibitory order	An order of an Executive Magistrate under Section 163 of the BNSS (formerly Section 144 of the CrPC) directing people to abstain from specified acts, such as assembling in groups, carrying weapons or holding processions in a defined area.
Curfew	The most restrictive form of prohibitory order, requiring people to remain indoors except as permitted.
Dispersal	Breaking up an unlawful assembly, or an assembly likely to disturb the public peace, by civil force (Section 148 BNSS) or, as a last resort, with the help of the armed forces (Sections 149 and 150 BNSS).
Preventive detention	Detention not to punish a past offence but to prevent a future act prejudicial to, for example, public order. It is permitted by Article 22, subject to safeguards, and provided for in laws such as the National Security Act, 1980.
Internet shutdown	An intentional suspension of internet or telecom services for a defined area and period, ordered under Section 20 of the Telecommunications Act, 2023.
Proportionality	The test that a restriction on a right must pursue a legitimate aim, be suitable to achieve it, be the least restrictive effective measure, and strike a fair balance between the right and the aim. The Supreme Court applied it to prohibitory orders and internet suspensions in <i>Anuradha Bhasin (2020)</i> .

Term	Meaning
Permit and notification regimes	Under a permit (authorisation) regime, organisers must obtain prior permission; under a notification regime, they need only inform the authorities in advance so that the assembly can be facilitated.
Designated protest site	A venue earmarked for demonstrations, such as Jantar Mantar and Ramlila Maidan in Delhi or Azad Maidan in Mumbai.
Less-lethal weapons	Crowd-control tools such as tear gas, water cannon, batons, rubber or plastic projectiles and pellet shotguns, which can still cause serious injury or death if misused.

5. The Agenda in Depth

This section examines the agenda in eight parts: the constitutional framework; the line drawn by the courts; the statutory toolkit available to the executive; policing and the use of force; the digital dimension; the federal dimension; the rights of others; and, finally, the positions typically advanced in the House.

5.1 The Constitutional Framework

Rights and restrictions

Article 19(1) guarantees citizens the freedoms of speech and expression, of peaceable assembly without arms, of association and of movement throughout India. Each freedom may be limited only by a law imposing “reasonable restrictions” on the grounds listed in clauses (2) to (6). For assembly, Article 19(3) permits restrictions in the interests of the sovereignty and integrity of India or public order. For speech, Article 19(2) lists further grounds, including the security of the State, public order, decency or morality, contempt of court, defamation and incitement to an offence.

These grounds have a history. In **Romesh Thappar v. State of Madras (1950)**, the Supreme Court struck down a ban on a journal because the original Article 19(2) did not permit restrictions for the sake of “public order”. Parliament responded with the Constitution (First Amendment) Act, 1951, which added “public order” and “incitement to an offence” to Article 19(2). The Constitution (Sixteenth Amendment) Act, 1963 then added “the sovereignty and integrity of India” to clauses (2), (3) and (4).

Other provisions complete the picture. Article 21 protects life and personal liberty and, since **Maneka Gandhi v. Union of India (1978)**, requires any procedure depriving a person of liberty to be fair, just and reasonable. Article 22 regulates arrest and preventive detention. Articles 32 and 226 allow citizens to approach the Supreme Court and the High Courts to enforce their rights. Article 33 allows Parliament to restrict the fundamental rights of members of the armed forces and of forces charged with maintaining public order, so that discipline is preserved.

Emergency powers and their limits

Emergency provisions are directly relevant to a crisis committee. A National Emergency may be proclaimed under Article 352 on grounds of war, external aggression or armed rebellion. The Constitution (Forty-fourth Amendment) Act, 1978, enacted after the Emergency of 1975 to 1977, replaced the vaguer ground of “internal disturbance” with “armed rebellion”. It also provided that Article 19

is automatically suspended only during an Emergency declared on grounds of war or external aggression (Article 358), and that the enforcement of Articles 20 and 21 can never be suspended (Article 359). Article 355 obliges the Union to protect every State against external aggression and internal disturbance, and Article 356 provides for President's Rule where the constitutional machinery in a State fails. The Supreme Court's 1976 decision in **ADM Jabalpur v. Shivkant Shukla**, which held that detentions could not be challenged during the Emergency, was expressly overruled in 2017 in **K.S. Puttaswamy v. Union of India**.

Who governs what: the Seventh Schedule

Subject	Constitutional entry	Who legislates
Public order	State List, Entry 1	State Legislatures
Police	State List, Entry 2	State Legislatures
Criminal law	Concurrent List, Entry 1	Parliament and State Legislatures
Criminal procedure	Concurrent List, Entry 2	Parliament and State Legislatures
Preventive detention for the security of a State, public order or essential supplies	Concurrent List, Entry 3	Parliament and State Legislatures
Preventive detention for defence, foreign affairs or the security of India	Union List, Entry 9	Parliament
Deployment of Union forces in aid of the civil power	Union List, Entry 2A	Parliament
Telecommunications and broadcasting	Union List, Entry 31	Parliament
Any subject in a Union Territory	Article 246(4)	Parliament (and Union Territory legislatures, where they exist, within limits)

Where Parliament wishes to legislate on a State List subject, the Constitution offers limited routes: Article 252 (where two or more State Legislatures pass resolutions asking Parliament to legislate) and Article 253 (legislation to implement international treaties, such as the International Covenant on Civil and Political Rights). Members proposing a national framework on assemblies should state which route their Bill relies on.

5.2 Drawing the Line: Landmark Judgments

Much of India's law on protest has been written by its courts. The decisions below, presented chronologically, are those Members are most likely to cite.

Babulal Parate v. State of Maharashtra (1961). Arising from an order issued in Nagpur during a dispute between rival trade unions, this case upheld the constitutional validity of Section 144 of the Code of Criminal Procedure. The Court held that the power may be exercised not only where danger is present but also where it is reasonably apprehended, which gave prohibitory orders their anticipatory character.

Kameshwar Prasad v. State of Bihar (1962). The Court struck down a rule that barred government servants from taking part in any demonstration, recognising that a demonstration is a visible form of expression protected by Article 19. It upheld the ban on strikes, however, holding that there is no fundamental right to strike.

Ram Manohar Lohia v. State of Bihar (1966). The “concentric circles” decision distinguishing law and order, public order and the security of the State (see Section 4.2).

Madhu Limaye v. Sub-Divisional Magistrate, Monghyr (1970). A seven-judge Bench again upheld Section 144 but emphasised that it is an emergency power, to be used in urgent situations through orders that state the material facts so that they can be challenged.

Himat Lal K. Shah v. Commissioner of Police, Ahmedabad (1973). While the State may regulate the use of public streets for meetings, it cannot deny that use arbitrarily. A rule giving the police unguided discretion to refuse permission was struck down.

Acharya Jagdishwaranand Avadhuta v. Commissioner of Police, Calcutta (1983). The Court observed that making repetitive orders under Section 144 would amount to an abuse of the power, a principle reaffirmed in 2020.

S. Rangarajan v. P. Jagjivan Ram (1989). Expression cannot be suppressed merely because it may provoke hostility. The anticipated danger must be

proximate and direct, like “a spark in a powder keg”, and the State must protect lawful expression rather than silence it because others threaten disorder.

In Re: Destruction of Public and Private Properties v. State of Andhra Pradesh (2009). Acting on the reports of two expert committees, the Court issued guidelines on fixing liability, including the liability of organisers, for damage caused during protests.

In Re: Ramlila Maidan Incident (2012). Examining the midnight police action of June 2011 against sleeping supporters of Baba Ramdev’s anti-corruption protest in Delhi, the Court found the action excessive and unjustified, awarded compensation and also held the organisers partly responsible. It stressed that a restriction on assembly must be necessary and never arbitrary.

Shreya Singhal v. Union of India (2015). The Court distinguished discussion and advocacy from incitement, holding that only incitement may be restricted on the ground of public order. It struck down Section 66A of the Information Technology Act, 2000 but upheld the blocking power in Section 69A.

Anita Thakur v. Government of Jammu and Kashmir (2016). Finding that the police had used excessive force against protesters, the Court awarded compensation, while also noting that protesters are bound to keep their protest peaceful.

K.S. Puttaswamy v. Union of India (2017). Recognising privacy as a fundamental right, the Court required any intrusion to satisfy the tests of legality, legitimate aim and proportionality, a framework now invoked against the surveillance of protesters.

Mazdoor Kisan Shakti Sangathan v. Union of India (2018). The petitions challenged repeated prohibitory orders covering Central Delhi and a National Green Tribunal order halting protests at Jantar Mantar. The Court held that there cannot be a blanket ban on protests in the area, but that the right to protest must be balanced against residents’ right to live in peace. It did not declare the prohibitory orders themselves unconstitutional; instead, it directed the police to frame guidelines for the regulated use of Jantar Mantar and the Boat Club.

Tehseen S. Poonawalla v. Union of India (2018) and Kodungallur Film Society v. Union of India (2018). The Court issued preventive, remedial and punitive directions against mob violence and lynching, and on preventing and redressing the destruction of property during protests and agitations.

Anuradha Bhasin v. Union of India (2020). Arising from the restrictions imposed in Jammu and Kashmir in August 2019, this is the leading modern authority. The Court held that the freedoms of speech and of trade exercised

through the internet are constitutionally protected; that internet suspension orders must be published, temporary and proportionate, and cannot be indefinite; that prohibitory orders cannot be used to suppress the legitimate expression of opinion or grievance; that magistrates must balance rights and choose the least intrusive measure; and that repetitive prohibitory orders would be an abuse of power.

Iftekhar Zakee Shaikh v. State of Maharashtra (Bombay High Court, Aurangabad Bench, 2020). Closer to home, a Division Bench sitting in Aurangabad, now Chhatrapati Sambhajnagar, quashed a prohibitory order and a police refusal that had blocked a peaceful protest against the Citizenship (Amendment) Act at Majalgaon in Beed district. The Court found that the order, though general on its face, was in reality aimed at those protesting the law, and held that people protesting peacefully against a law cannot be branded traitors or anti-nationals for doing so.

Amit Sahni v. Commissioner of Police (2020). Concerning the months-long sit-in at Shaheen Bagh in Delhi, the Court held that public ways cannot be occupied indefinitely, that demonstrations should be held in designated places and that the administration must act to keep roads clear. Its later order dismissing a review petition stressed that the right to protest cannot be exercised anytime and everywhere.

S.G. Vombatkere v. Union of India (2022). The Court placed the colonial-era offence of sedition in abeyance. The BNS has since omitted sedition but introduced Section 152, which penalises acts endangering the sovereignty, unity and integrity of India; its use is being watched closely.

The 2026 protest cases (pending). After the clashes near Parliament in July 2026, a Bench led by Chief Justice Surya Kant observed that the right to peaceful protest is guaranteed and that agitation alone cannot justify police excess, while cautioning that protest cannot justify violence against the police, and suggested a uniform national protocol for dealing with demonstrators. The Court found a prima facie case for an independent probe, constituted a High-Powered Enquiry Committee headed by former Supreme Court judge Justice R. Subhash Reddy and, invoking Article 142, directed that FIRs registered between 20 and 25 July 2026 not be pursued. The matter is next listed on 9 October 2026.

5.3 The Statutory and Executive Toolkit

(a) Prohibitory orders under Section 163 BNSS

Section 163 of the BNSS empowers a District Magistrate, a Sub-Divisional Magistrate or any other Executive Magistrate specially empowered by the State Government to issue a written order where there is sufficient ground for

proceeding and immediate prevention or speedy remedy is desirable. The order may direct any person, or the public generally, to abstain from a certain act in order to prevent obstruction, annoyance or injury, danger to human life, health or safety, a disturbance of public tranquillity, a riot or an affray. It may be passed ex parte in an emergency. An order ordinarily remains in force for up to two months; the State Government may extend it, but not beyond six months. Disobeying such an order is an offence under Section 223 of the BNS (formerly Section 188 of the Indian Penal Code).

In practice, these orders are used for purposes ranging from banning gatherings of five or more people around Parliament to regulating the sale of fuel in containers, the registration of tenants and the use of cyber cafés. Critics point to three recurring problems: blanket orders covering entire districts, near-automatic renewals, and orders that are neither published nor reasoned. A newer concern is the use of Section 163 to regulate online activity. In April 2026, for example, District Magistrates in four districts of Jammu and Kashmir issued 60-day orders restricting the circulation of “inflammatory” online content, which digital-rights groups criticised as carte blanche censorship.

(b) Dispersal and the use of force

Sections 148 to 151 of the BNSS (formerly Sections 129 to 132 of the CrPC) create a graded scheme. An Executive Magistrate or the officer in charge of a police station may command an unlawful assembly, or any assembly of five or more persons likely to disturb the public peace, to disperse, and may use civil force if it does not. If the assembly cannot otherwise be dispersed and public security requires it, the District Magistrate may call in the armed forces (Section 149), and a commissioned officer may act without a magistrate when none can be contacted (Section 150). Prosecuting officials for acts done in good faith under these provisions requires government sanction (Section 151).

The BNSS also introduced **Section 172**, which obliges everyone to conform to lawful police directions and allows the police to detain or remove anyone who resists, refuses or disregards such directions, and then either produce that person before a Magistrate or, in petty cases, release them within twenty-four hours. Supporters see a clear legal basis for crowd management; critics fear it may be used to detain peaceful protesters without formal arrest.

(c) Offences

The BNS defines the offences that most often arise from protests: unlawful assembly (Section 189), liability of every member for offences committed in prosecution of the common object (Section 190), rioting (Section 191), wantonly

giving provocation with intent to cause riot (Section 192), promoting enmity between groups (Section 196), disobedience of an order duly promulgated by a public servant (Section 223) and statements conducing to public mischief (Section 353). Section 152 penalises acts endangering the sovereignty, unity and integrity of India.

(d) Preventive detention and special laws

Article 22 permits preventive detention subject to safeguards, including review by an Advisory Board. The **National Security Act, 1980** allows the Union and State Governments to detain a person for up to twelve months to prevent acts prejudicial to, among other things, public order or the security of the State. The **Unlawful Activities (Prevention) Act, 1967** provides for banning organisations and prosecuting unlawful and terrorist activities, with stringent conditions for bail. Several States have enacted “public security” laws aimed at Left-wing extremist organisations, among them Andhra Pradesh (1992) and Chhattisgarh (2005). In July 2025, the Maharashtra Legislative Assembly passed the Maharashtra Special Public Security Bill; the State Government says it targets extremist front organisations in urban areas, while critics argue that its broad definition of “unlawful activities” could be used against protest movements.

(e) Communication controls

Section 20(2)(b) of the Telecommunications Act, 2023 allows the Union or a State Government to suspend telecommunication services on the occurrence of a public emergency or in the interest of public safety, among other grounds. The Telecommunications (Temporary Suspension of Services) Rules, 2024, in force since 22 November 2024, require that suspension orders be issued by the Union Home Secretary or a State’s Home Secretary (or, where that is not feasible, by an officer of at least Joint Secretary rank, subject to confirmation within twenty-four hours); that they be published with reasons; that they specify the area and service affected; that they last no more than fifteen days; and that they be examined by a review committee. Separately, Section 69A of the Information Technology Act, 2000 permits the blocking of specific online content and accounts.

(f) Police Acts, protest rules and designated sites

The day-to-day regulation of protests is governed by the Police Act, 1861 (Section 30 of which allows the regulation of assemblies and processions and the grant of licences) and by State and Union Territory police laws such as the Maharashtra Police Act, 1951 and the Delhi Police Act, 1978, which empower the police to prescribe routes, timings and conditions. Most cities require organisers to obtain prior permission, and many confine protests to designated

venues such as Jantar Mantar and Ramlila Maidan in Delhi or Azad Maidan in Mumbai.

(g) Liability for damage

The Prevention of Damage to Public Property Act, 1984 penalises damage to public property. Building on the Supreme Court's guidelines of 2009 and 2018, some States have created special mechanisms to recover compensation from those responsible for damage during protests, notably the Uttar Pradesh Recovery of Damages to Public and Private Property Act, 2020 and the Haryana Recovery of Damages to Property During Disturbance to Public Order Act, 2021. Supporters argue that such laws deter violence; critics raise concerns about due process and collective punishment.

5.4 Policing, Crowd Management and the Use of Force

Capacity

Crowd management is labour-intensive, and India's police are stretched. According to the Bureau of Police Research and Development (BPR&D), as on 1 January 2020 the States and Union Territories had a sanctioned police strength of about 26.2 lakh but an actual strength of about 20.9 lakh, leaving more than 5.3 lakh posts vacant. The sanctioned ratio was about 195 police personnel per lakh of population and the actual ratio about 155. The Union Government has told Parliament that there is no universal or United Nations standard for the ideal ratio.

The **Status of Policing in India Report 2019**, prepared by Common Cause and Lokniti–CSDS from a survey of about 12,000 police personnel in 21 States, found that the police were working at about 77 per cent of their required strength, that personnel worked very long days (about 14 hours on average, with State averages ranging from roughly 11 to 18 hours) and that only 6.4 per cent had received any in-service training. Specialised crowd-control capacity is concentrated in State Armed Police battalions and in the Rapid Action Force, the Central Reserve Police Force's riot-control wing raised in 1992.

The graded response and less-lethal weapons

International standards, reflected in the UN Basic Principles on the Use of Force and Firearms by Law Enforcement Officials (1990), require the police to use non-violent means first, to use force only when strictly necessary and in proportion to the threat, and to use firearms only against an imminent threat to life. In India, dispersal typically escalates from warnings to water cannon, tear gas and baton charges. Particular controversy surrounds pellet shotguns, used extensively in

Kashmir and alleged to have been used in Delhi in July 2026 (a claim the Delhi Police denied and which the Supreme Court's inquiry committee is now examining), and newer tactics such as the use of drones to drop tear gas shells at the Punjab–Haryana border in February 2024.

Accountability gaps also arise when personnel in plain clothes take part in dispersal or when officers cannot be identified by name. Petitions before the Supreme Court in 2026 have asked for a ban on plainclothes personnel in crowd control and for stricter norms on prohibitory orders.

Surveillance

Video recording, drones and facial recognition technology are now routine at protest sites. The police argue that recording helps identify violent individuals and protects officers against false complaints; critics argue that pervasive surveillance deters lawful participation. In July 2026, the Delhi High Court admitted a public interest litigation challenging the continuous photography and videography of protesters at Jantar Mantar as intimidating. The privacy framework laid down in **Puttaswamy (2017)** applies, although the Digital Personal Data Protection Act, 2023 allows the Government to exempt its agencies in the interests of, among other things, public order.

Police reform and accountability

In **Prakash Singh v. Union of India (2006)**, the Supreme Court issued seven directives to insulate the police from undue political interference and improve accountability: State Security Commissions; merit-based selection and a minimum tenure for the Director General of Police; a minimum tenure for officers on operational duties; the separation of investigation from law-and-order duties; Police Establishment Boards for postings and transfers; Police Complaints Authorities at State and district levels; and a National Security Commission for the central forces. In the same year, a committee chaired by Soli Sorabjee drafted a Model Police Act. Nearly two decades later, compliance across the States remains partial and uneven, and Police Complaints Authorities, where they exist, vary widely in independence and effectiveness. Other accountability mechanisms include the National and State Human Rights Commissions under the Protection of Human Rights Act, 1993, magisterial and judicial inquiries, and court-appointed committees such as the one constituted by the Supreme Court in August 2026.

5.5 The Digital Dimension

The internet has become the square in which protests are organised, livestreamed and documented. International standards now recognise that the right of peaceful

assembly protects online assemblies and the online activities connected with physical ones, which makes connectivity itself a subject of public-order decisions.

India has long been one of the world's most frequent users of internet shutdowns. According to Access Now's #KeepItOn coalition, India recorded 65 shutdowns in 2025, its lowest figure since 2017 but still the highest among democracies and the second highest in the world after Myanmar. Of the 2,102 shutdowns the coalition has recorded worldwide since 2016, 920 were in India. Shutdowns have been ordered during protests, communal violence, ethnic conflict (as in Manipur from May 2023) and even examinations. At the same time, the coalition acknowledges that India is unusual in legally requiring shutdown orders to be published.

Parliament has scrutinised this practice. In its 26th Report (December 2021), the Standing Committee on Communications and Information Technology criticised frequent and poorly justified shutdowns, noted that the grounds for suspension were undefined and that review was confined to the executive, and recommended uniform guidelines and a centralised database of all shutdown orders. The Government's responses, examined in the Committee's 37th Report (February 2023), left key recommendations, including the database, unimplemented. The 2024 Rules later codified publication and a fifteen-day limit, but review remains within the executive.

Two further tools deserve attention: the blocking of accounts and content under Section 69A of the IT Act, used against hundreds of social media accounts during the farmers' protests of 2020–21, and prohibitory orders under Section 163 BNSS aimed at online content or at the use of virtual private networks.

The case for shutdowns is that they stop rumours, doctored videos and the rapid coordination of violence when lives are at stake. The case against is that they are blunt instruments that punish entire populations, damage livelihoods, education and emergency communication, and are seldom shown to reduce violence. The policy question for the House is less whether shutdowns should ever be possible than how to make them rare, targeted, transparent and independently reviewed.

5.6 The Federal Question: States, the Union and the Union Territories

The States

In the States, public order is administered by elected governments through their home departments, District Magistrates and police. The result is real diversity: protest rules, designated sites, permission conditions and the frequency of prohibitory orders vary widely, and so does judicial oversight. In Maharashtra,

for example, the Bombay High Court has both protected protesters, as in the Aurangabad Bench's 2020 decision on the Majalgaon protest, and intervened to restore normal life, as when it held in September 2025 that the Maratha reservation agitation at Azad Maidan had breached the conditions of its permission (which had capped attendance at 5,000 and confined the protest to a designated area) and brought Mumbai to a standstill.

The Union

The Union's role is supportive but significant. It deploys the Central Armed Police Forces on request or under Article 355, issues advisories, funds police modernisation, trains officers through the BPR&D and sets national guidance such as the National Disaster Management Authority's 2014 guide on managing crowds at events and venues of mass gathering. The Union Home Ministry has repeatedly told Parliament that because "police" and "public order" are State subjects, data on matters such as curfews and deaths in police firing are not compiled centrally.

Friction arises when protests cross State lines. In February 2024, Haryana sealed its border with Punjab at Shambhu to stop a farmers' march to Delhi. In July 2024, the Punjab and Haryana High Court ordered the barricades removed, observing that the prolonged closure of a national highway was causing great public inconvenience, before the Supreme Court ordered the status quo and constituted a High-Powered Committee to negotiate. Questions of who should negotiate, who should police and who should pay recur in almost every inter-State agitation.

The Union Territories

Union Territories are administered by the President through an Administrator (Article 239), and the degree of local democratic control over policing varies considerably.

- **Delhi.** The National Capital Territory has an elected government, but police and public order lie with the Union through the Lieutenant Governor and the Ministry of Home Affairs (Article 239AA). As the national capital and the seat of Parliament, Delhi hosts protests of national importance, and prohibitory orders around Parliament are routine during sessions.
- **Jammu and Kashmir.** Since 2019, Jammu and Kashmir has been a Union Territory with a legislature, but public order and police are outside the Assembly's competence under the Jammu and Kashmir Reorganisation Act, 2019. The restoration of statehood, which the Union has said will come at an appropriate time, remained pending as of August 2026. The

territory has experienced some of the longest communication restrictions in India's history, which gave rise to Anuradha Bhasin (2020).

- **Ladakh.** Ladakh has no legislature. Demands for statehood and inclusion in the Sixth Schedule culminated in violence in Leh on 24 September 2025, when four people were killed in police firing and more than 45 people, including 22 police personnel, were injured; a curfew followed. Two days later, the activist Sonam Wangchuk was detained under the National Security Act on the orders of the Leh District Magistrate and moved to a jail in Jodhpur. The Union revoked the detention on 14 March 2026, citing the need to foster peace and dialogue, and the Supreme Court then disposed of the habeas corpus petition filed by his wife. Earlier, in 2024, Wangchuk and more than a hundred marchers from Ladakh had been detained at Delhi's border under prohibitory orders in force in the capital.
- **Other Union Territories.** Chandigarh, Puducherry, the Andaman and Nicobar Islands, Lakshadweep, and Dadra and Nagar Haveli and Daman and Diu are each administered by an Administrator appointed by the President; Puducherry also has an elected Assembly.

Because the Union answers for policing in these territories, the Lok Sabha is the natural forum for scrutinising public-order decisions there, and Members from Union Territories often argue that their constituents lack the local democratic safeguards available in the States.

5.7 Balancing the Rights of Others

Protest rights are not the only rights at stake. Residents near protest sites have their own rights under Article 21 to health, rest and free movement; commuters, patients, students and traders depend on open roads; and police personnel have a right to safety at work. The courts have repeatedly weighed these interests. **Mazdoor Kisan Shakti Sangathan (2018)** took account of the noise and disruption suffered by residents near Jantar Mantar; **Amit Sahni (2020)** held that roads cannot be blocked indefinitely; the Punjab and Haryana High Court in 2024 emphasised the hardship caused by a months-long highway closure; and the Bombay High Court in 2025 noted that city streets and even the High Court's own gates had been blocked. Injuries to police personnel, reported at 118 in Delhi on 20 July 2026 and 22 in Leh on 24 September 2025, are part of the same picture.

At the same time, international standards caution that blanket bans are presumptively disproportionate, that restrictions should not depend on the content of the protest, and that protesters should, as far as possible, be able to assemble within "sight and sound" of their target audience. A designated venue far from

the seat of power may formally permit a protest while defeating its purpose. The challenge for legislators is to design rules that protect both the protest and the city around it.

5.8 Views in the Lok Sabha

The positions below are typical arguments, not the fixed views of any individual Member. Delegates should research the actual stance of their party and Member, which often depends on whether the party governs at the Centre or in a particular State.

The Treasury Benches (Government)

- **Federal jurisdiction.** “Police” and “public order” are State subjects. The Centre’s role is to support the States through the Central Armed Police Forces, advisories and BPR&D and NDMA guidance, and to provide the criminal-law framework.
- **Rights are bounded.** Articles 19(2) and 19(3) expressly permit reasonable restrictions. Preventive powers, upheld since Babulal Parate (1961) and Madhu Limaye (1970), save lives by acting before violence erupts.
- **Security zones and designated venues.** Prior permission for demonstrations near Parliament, airports and diplomatic areas is reasonable regulation, and designated venues such as Jantar Mantar keep space open for protest.
- **The rights of others.** Prolonged blockades harm residents, patients, commuters and workers, as the courts recognised in 2018, 2020, 2024 and 2025. Injuries to police personnel and damage to public property must also be accounted for.
- **Democratic channels work.** The Government points to its engagement with protest leaders in 2026, the rapid passage of the Public Examinations (Prevention of Unfair Means) Amendment Act, 2026 and the revocation of the detention order in Ladakh as evidence that grievances can be addressed without disorder.
- **Transparency in the digital sphere.** Suspension orders under the 2024 Rules must be reasoned, published, time-bound and reviewed.

The Opposition Benches

- **Misuse of prohibitory powers.** Blanket and repeated Section 163 orders turn an emergency power into a standing ban, contrary to Acharya Jagdishwaranand (1983) and Anuradha Bhasin (2020), and orders aimed at online content extend this into cyberspace.

- **Excessive force and impunity.** Baton charges, tear gas, alleged pellet fire and plainclothes personnel deployed against largely peaceful crowds demand independent investigation, identification of officers, body-worn cameras and enforceable limits on less-lethal weapons.
- **Internet shutdowns.** India's shutdown record is the highest among democracies; the Opposition seeks independent or judicial review, the central database recommended by the Standing Committee in 2021 and compensation for affected users.
- **Chilling laws.** The use of the National Security Act, the Unlawful Activities (Prevention) Act, Section 152 of the BNS and State public security laws against activists and students deters lawful dissent and calls for time-bound review, transparency and safeguards.
- **Police reform.** Full implementation of the Prakash Singh directives is needed to free the police from political control; some parties also want the Delhi Police made accountable to Delhi's elected government.
- **From permission to facilitation.** Replace the permit regime with a notification regime, in line with General Comment No. 37, so that organisers inform the authorities rather than seek permission.

Regional and State-Based Parties

- Defend State autonomy over policing and oppose Union directions or deployments made without a State's consent, while seeking central funds for modernisation and training.
- Often hold nuanced positions: parties that criticise shutdowns or prohibitory orders nationally may defend similar measures in the States they govern.

Members from Union Territories

- Emphasise the democratic deficit where the police report to the Union, and press for statehood (Jammu and Kashmir), constitutional safeguards such as the Sixth Schedule (Ladakh) or a greater say for elected representatives in public-order decisions.
- Some also stress the particular security needs of border and sensitive regions.

Possible common ground

Members across the benches may still agree on publishing all prohibitory and suspension orders online; national data on protests, orders, shutdowns and injuries; minimum standards for crowd-control training and equipment; police

welfare; accessible designated venues in every district; and a structured channel for large public petitions to reach Parliament.

6. Timeline of Key Events

The timeline traces the constitutional, legislative, judicial and political milestones most relevant to the agenda.

Year	Event
1950	The Constitution comes into force, guaranteeing the right to assemble peaceably and without arms. In <i>Romesh Thappar</i> , the Supreme Court strikes down a ban on a journal, prompting constitutional amendment.
1951	The First Amendment adds “public order” and “incitement to an offence” to Article 19(2).
1961	<i>Babulal Parate v. State of Maharashtra</i> , arising from Nagpur, upholds Section 144 of the CrPC.
1962	<i>Kameshwar Prasad v. State of Bihar</i> recognises demonstrations as a form of expression.
1963	The Sixteenth Amendment adds “the sovereignty and integrity of India” as a ground for restrictions.
1966	<i>Ram Manohar Lohia v. State of Bihar</i> distinguishes law and order, public order and the security of the State.
1970	<i>Madhu Limaye</i> : a seven-judge Bench upholds Section 144 as an emergency power.
1973	The new Code of Criminal Procedure retains Section 144; <i>Himat Lal K. Shah</i> limits arbitrary refusal of permission for public meetings.
1975–1978	The Emergency (1975–77). The Forty-fourth Amendment (1978) replaces “internal disturbance” with “armed rebellion” and bars suspension of Articles 20 and 21.
1979	India accedes to the International Covenant on Civil and Political Rights (10 April).
1980	The National Security Act is enacted.
1983	<i>Acharya Jagdishwaranand</i> : repetitive Section 144 orders are held to be an abuse of power.

Year	Event
1984	The Prevention of Damage to Public Property Act is enacted.
1992	The Rapid Action Force is raised as the CRPF's specialised riot-control wing.
1993	The Protection of Human Rights Act establishes the NHRC and State Human Rights Commissions.
2006	Prakash Singh v. Union of India issues seven directives on police reform; a Model Police Act is drafted.
2007	The Second Administrative Reforms Commission submits its Fifth Report, on Public Order.
2009	Supreme Court guidelines on liability for destruction of property during protests.
2011–2012	Midnight police action at Ramlila Maidan (June 2011); the Supreme Court finds it excessive (February 2012).
2015	Shreya Singhal v. Union of India distinguishes advocacy from incitement.
2017	Telecom suspension rules are notified under the Indian Telegraph Act; Puttaswamy recognises the right to privacy.
2018	Mazdoor Kisan Shakti Sangathan (Jantar Mantar and Boat Club); Tehseen Poonawalla (mob violence); Kodungallur Film Society (destruction of property).
2019	August: Article 370 is abrogated, followed by prolonged communication restrictions in Jammu and Kashmir. December onwards: nationwide protests against the Citizenship (Amendment) Act.
2020	January: Anuradha Bhasin. February: the Bombay High Court (Aurangabad Bench) quashes an order blocking a peaceful protest in Beed district. October: Amit Sahni (Shaheen Bagh). November: telecom suspension orders capped at fifteen days; farmers begin their encampments at Delhi's borders.

Year	Event
2021	12 January: the Supreme Court stays the three farm laws. 26 January: violence during the Republic Day tractor rally. 29 November: the Farm Laws Repeal Bill is passed. 1 December: the Standing Committee on Communications and IT reports on internet suspensions. 9 December: the farmers' agitation is suspended.
2022	S.G. Vombatkere: the offence of sedition is placed in abeyance.
2023	May: protesting wrestlers are removed from Jantar Mantar; ethnic violence in Manipur triggers prolonged internet suspensions. September: police action against protesters at Antarwali Sarati in Jalna district intensifies the Maratha reservation agitation. December: security breach in the Lok Sabha chamber; Parliament passes the BNS, the BNSS and the Telecommunications Act.
2024	February: a farmers' march is halted at the Shambhu and Khanauri borders. 1 July: the BNS and BNSS come into force. 10 July: the Punjab and Haryana High Court orders the Shambhu barricades removed. Autumn: marchers from Ladakh are detained at Delhi's border under prohibitory orders. 22 November: the Telecommunications (Temporary Suspension of Services) Rules come into force.
2025	March: the Punjab Police clear the Shambhu and Khanauri protest sites. July: the Maharashtra Legislative Assembly passes the Special Public Security Bill. August–September: Maratha reservation agitation at Azad Maidan; the Bombay High Court orders the streets cleared. 24 September: violence in Leh; four killed in police firing. 26 September: Sonam Wangchuk detained under the National Security Act.

Year	Event
2026	14 March: the NSA detention is revoked. 31 March: Access Now reports 65 shutdowns in India in 2025. April: Section 163 orders on online content in four districts of Jammu and Kashmir. June–July: Jantar Mantar protests over examination paper leaks; 20 July: the “Sansad Chalo” march; 25 July: the Education Minister resigns; 31 July: the Public Examinations (Prevention of Unfair Means) Amendment Act receives assent. July–September: the Supreme Court orders an independent inquiry, constitutes a High-Powered Enquiry Committee (18 August) and, under Article 142, ends criminal proceedings arising from 20–25 July (1 September). Next hearing: 9 October 2026.

7. Treaties, Resolutions and Key Instruments

India's obligations and commitments on assembly and public order come from three sources: international human rights treaties; United Nations resolutions, interpretive comments and standards; and domestic laws, reports and binding judicial guidelines. Members should know which of these bind India, which merely guide it, and where India has entered declarations.

7.1 International Treaties

- **Universal Declaration of Human Rights (1948).** Article 19 protects freedom of opinion and expression, and Article 20 the right to freedom of peaceful assembly and association. Although not itself a treaty, the Declaration is the foundation of the modern human rights system.
- **International Covenant on Civil and Political Rights (1966).** Article 21 recognises the right of peaceful assembly and permits only restrictions that are lawful and necessary in a democratic society in the interests of national security, public safety, public order, public health or morals, or the rights and freedoms of others; Articles 19 (expression) and 22 (association) are closely related. India acceded on 10 April 1979 with a declaration that Articles 12, 19(3), 21 and 22 will be applied in conformity with Article 19 of the Constitution, and a further declaration relating Article 9 (liberty and security of person) to Article 22 of the Constitution. India has not accepted the First Optional Protocol, so individuals cannot bring complaints against India to the Human Rights Committee.
- **International Covenant on Economic, Social and Cultural Rights (1966).** Article 8 protects trade union rights, including the right to strike; India's declaration applies it in conformity with Article 19 of the Constitution.
- **Convention on the Rights of the Child (1989).** Article 15 recognises children's right to freedom of association and peaceful assembly, a provision directly relevant to school and college students, many of them minors, who join protests. India acceded in 1992.

7.2 United Nations Resolutions, Comments and Standards

- **UN Human Rights Committee, General Comment No. 37 (2020)** on Article 21 of the ICCPR. The authoritative interpretation of the right: it protects peaceful assemblies wherever they take place, including online;

presumes that assemblies are peaceful, so that isolated violence by some participants does not strip others of protection; treats advance notification as acceptable only where necessary, while cautioning that requiring permission undermines the right; regards blanket bans as presumptively disproportionate; supports assembly within sight and sound of the target audience; and warns against shutting down internet connectivity and against surveillance that deters participation.

- **Human Rights Council resolutions on the promotion and protection of human rights in the context of peaceful protests.** A series adopted since 2012 (resolutions 19/35, 22/10, 25/38, 31/37, 38/11, 44/20, 50/21 and, most recently, 56/10 of 11 July 2024, adopted without a vote). India was among the nine States that voted against resolution 25/38 in 2014.
- **Human Rights Council resolution 15/21 (2010)** created the mandate of the Special Rapporteur on the rights to freedom of peaceful assembly and of association. The Special Rapporteurs' 2016 joint report on the proper management of assemblies (A/HRC/31/66) offers practical recommendations for States.
- **Human Rights Council resolution 32/13 (2016)** on human rights on the internet condemned measures that intentionally prevent or disrupt access to information online.
- **UN Code of Conduct for Law Enforcement Officials (General Assembly resolution 34/169, 1979).** Law enforcement officials may use force only when strictly necessary and to the extent required.
- **UN Basic Principles on the Use of Force and Firearms by Law Enforcement Officials (1990).** Non-violent means first; minimum force; specific principles on policing unlawful and violent assemblies; firearms only against an imminent threat to life; and reporting and review of every use of firearms.
- **OHCHR Guidance on Less-Lethal Weapons in Law Enforcement (2020).** Practical guidance on tear gas, water cannon, batons, kinetic impact projectiles and similar weapons.

7.3 Domestic Laws, Reports and Binding Guidelines

- **The Constitution of India:** Articles 14, 19, 21, 22, 32, 33, 226, 239AA, 246, 252, 253, 352, 355, 356, 358 and 359, and the Seventh Schedule.
- **Bharatiya Nagarik Suraksha Sanhita, 2023:** Sections 148 to 151 (dispersal), 163 (prohibitory orders), 170 (arrest to prevent cognizable offences) and 172 (compliance with police directions).

- **Bharatiya Nyaya Sanhita, 2023:** Sections 152, 189 to 192, 196, 223 and 353.
- **Telecommunications Act, 2023 (Section 20)** and the **Telecommunications (Temporary Suspension of Services) Rules, 2024.**
- **Information Technology Act, 2000 (Section 69A)** and the blocking rules of 2009.
- **National Security Act, 1980; Unlawful Activities (Prevention) Act, 1967; Armed Forces (Special Powers) Act, 1958.**
- **Prevention of Damage to Public Property Act, 1984** and the **Protection of Human Rights Act, 1993.**
- **Police Act, 1861 (Section 30)** and State and Union Territory police laws, including the **Maharashtra Police Act, 1951** and the **Delhi Police Act, 1978.**
- **Public Examinations (Prevention of Unfair Means) Amendment Act, 2026:** Parliament’s legislative response to the grievances behind the 2026 protests, introducing stricter penalties, time-bound investigations and Special Fast Track Courts.
- **Reports:** the Model Police Act (2006); the Second Administrative Reforms Commission’s Fifth Report, “Public Order” (2007); the NDMA guide on managing crowds at events and venues of mass gathering (2014); and the 26th (2021) and 37th (2023) Reports of the Standing Committee on Communications and Information Technology.
- **Binding judicial guidelines:** Prakash Singh (2006); In Re: Destruction of Public and Private Properties (2009); Tehseen Poonawalla (2018); Kodungallur Film Society (2018); and Anuradha Bhasin (2020).

8. Case Study I: Jantar Mantar and the Sansad Chalo March (2026)

National Capital Territory of Delhi, June to September 2026

Background

In May 2026, the National Testing Agency, with the Union Government's approval, cancelled the NEET-UG medical entrance examination after allegations of a question-paper leak and referred the matter to the Central Bureau of Investigation. Irregularities in the CBSE's on-screen marking of Class 12 answer scripts added to student distress, and reports of student suicides during the turmoil intensified public anger. Student organisations protested outside the Ministry of Education, and a new youth-led satirical movement, the **Cockroach Janta Party (CJP)**, which had built a large following online, took its campaign onto the streets. Its central demands were the resignation of the Union Education Minister, compensation for the families of students who had died by suicide, reform of public examinations and an assurance that no punitive action would be taken against protesters.

Sequence of Events

Date (2026)	Development
6 June	The CJP holds its first protest at Jantar Mantar, Delhi's designated protest site. The Delhi Police grant permission until 5 p.m. as a one-time exception.
20 June onwards	Protesters remain at Jantar Mantar beyond the permitted hours and begin a sit-in; the police say permission has lapsed.
28 June	Sonam Wangchuk begins an indefinite hunger strike at the site alongside student activists.
18 July	The police move Wangchuk to hospital, citing medical advice and directions of the Delhi High Court; organisers call the removal forcible.

Date (2026)	Development
19–20 July	Ahead of the Monsoon Session, the Delhi Police impose a Section 163 BNSS order in parts of the New Delhi district, banning assemblies of five or more persons, processions, dharnas and slogan-shouting, and state that no permission has been sought or granted for a march to Parliament.
20 July	Thousands attempt the “Sansad Chalo” march. Several metro stations are closed and internet services near Parliament are reportedly suspended. Police use baton charges and tear gas as protesters try to break through barricades; there is stone-pelting and damage to vehicles. The Delhi Police report 118 personnel injured; hospitals treat dozens of injured protesters, and organisers claim much higher numbers. Allegations that pellet guns were used are denied by the police.
21–24 July	Solidarity protests spread to cities including Mumbai, Bengaluru, Kolkata and Patna. The Union Home Ministry deploys additional CRPF companies. Both Houses of Parliament are repeatedly adjourned as the Opposition demands the Minister’s resignation before any debate and the Government offers a debate without preconditions.
23 July	Wangchuk ends his 26-day fast after written assurances that cases against non-violent protesters will be withdrawn, that paper leaks will be discussed and that compensation will be paid.
25 July	The Education Minister resigns, and the CJP calls off the protest after talks with Union Ministers.
27–31 July	The Public Examinations (Prevention of Unfair Means) Amendment Bill, 2026 is introduced in the Lok Sabha (27 July), passed by both Houses (29 and 30 July) and receives assent (31 July).

Date (2026)	Development
July–September	The Supreme Court finds a prima facie case for an independent probe (28 July), constitutes a High-Powered Enquiry Committee (18 August), invokes Article 142 to end criminal proceedings arising from 20 to 25 July (1 September) and directs the Committee to prioritise allegations of pellet use, violence against women protesters, injuries to police and destruction of property (10 September).

Competing Perspectives

The Government and the Delhi Police

The authorities maintain that the march had neither sought nor received permission, that Parliament was in session, that sections of the crowd broke through barricades, threw stones and attacked officers, and that the force used was necessary to maintain public order. The Delhi Police have also alleged that persons with criminal records were present in the crowds. The Government points to its negotiations with protest leaders, the Minister's resignation and the swift passage of a tougher anti-paper-leak law as proof that the democratic process responded.

The protesters and the Opposition

Organisers and Opposition parties argue that a largely peaceful student movement was met with disproportionate force, including baton charges, tear gas and alleged pellet fire, together with metro closures, a local internet suspension, surveillance and the removal of a hunger-striker from the site. They contend that time-limited permission at a single designated venue, combined with a blanket prohibitory order around Parliament, left no meaningful space to protest within sight and sound of the lawmakers the students wished to address.

Issues for the House

1. **Permission and duration.** Were time-limited permissions at Jantar Mantar reasonable, and what should happen when a permitted sit-in continues beyond its permitted time?
2. **Protest near Parliament.** Should marches to Parliament during a session be prohibited outright, or could a regulated alternative, such as a delegation

received by Members of Parliament, satisfy both security and the “sight and sound” principle?

3. **Collateral restrictions.** Were the metro closures and the local internet suspension necessary and proportionate, and were they lawfully ordered and published?
4. **Use of force and accountability.** Who should investigate alleged excesses by a police force that reports to the Union Government? Should pellet guns and plainclothes dispersal be prohibited in crowd control?
5. **Criminal cases.** The Supreme Court used its extraordinary power under Article 142 to end the cases. Should Parliament instead create a statutory framework for reviewing and withdrawing protest-related cases?
6. **Parliament’s own role.** The House was repeatedly adjourned while the protest continued outside. How can Parliament channel such grievances before they reach the streets?

9. Case Study II: The Farmers' Protests (2020–21 and 2024–25)

Punjab, Haryana, Uttar Pradesh and the National Capital Territory of Delhi

Background

In September 2020, Parliament enacted three laws to reform agricultural marketing: the Farmers' Produce Trade and Commerce (Promotion and Facilitation) Act, the Farmers (Empowerment and Protection) Agreement on Price Assurance and Farm Services Act, and the Essential Commodities (Amendment) Act. The Government described them as a modernisation of an inefficient system. Farmers' unions, strongest in Punjab, Haryana and western Uttar Pradesh, feared that the laws would erode assured procurement at minimum support prices (MSP) and demanded their repeal and a legal guarantee of MSP.

Phase One: The Delhi Borders (2020–21)

In late November 2020, tens of thousands of farmers marched towards Delhi, while Haryana used barricades, water cannon and tear gas to stop them. Halted at the edge of the capital, and declining an offer to move to a designated ground inside Delhi, the farmers set up camps on the highways at Singhu, Tikri and Ghazipur that lasted more than a year. Several rounds of talks failed. On 12 January 2021, the Supreme Court stayed the implementation of the three laws and appointed an expert committee, but the unions declined to appear before it. On 26 January 2021, a Republic Day tractor rally turned violent when groups deviated from agreed routes and clashed with the police; some entered the Red Fort, hundreds of police personnel were reported injured and one protester died. In the following weeks the authorities fortified the border sites, suspended internet services there and in parts of Haryana, and ordered the blocking of hundreds of social media accounts under Section 69A of the IT Act. In October 2021, eight people, including four farmers and a journalist, were killed at Lakhimpur Kheri in Uttar Pradesh after vehicles drove into a protest.

On 19 November 2021, the Prime Minister announced that the laws would be repealed. The Farm Laws Repeal Bill was passed by both Houses on 29 November 2021 without debate, and on 9 December the Samyukt Kisan Morcha suspended the agitation after the Government agreed in writing to form a committee on MSP and to withdraw cases against protesters. The Government later told Parliament that it had no record of farmers' deaths during the agitation, while Opposition leaders and farmers' groups put the number at over 700.

Phase Two: The Shambhu Standoff (2024–25)

In February 2024, farmer groups launched a fresh “Delhi Chalo” march, demanding a legal guarantee of MSP among other things. On 13 February, Haryana sealed its border with Punjab at Shambhu and Khanauri with concrete barricades; tear gas, including shells dropped from drones, was used against the marchers, and mobile internet was suspended in parts of Haryana. A young protester was killed during clashes at Khanauri on 21 February. The farmers then camped on the Punjab side of the border for more than a year.

On 10 July 2024, the Punjab and Haryana High Court ordered Haryana to remove the barricades within a week, observing that the months-long closure of a national highway was causing great public inconvenience. On appeal, the Supreme Court asked the parties to maintain the status quo and constituted a High-Powered Committee to negotiate with the farmers; the prolonged fast of farmer leader Jagjit Singh Dallewal from late 2024 drew repeated concern from the Court. Finally, on 19 March 2025, the Punjab Police cleared the Shambhu and Khanauri sites and detained farmer leaders, and traffic on the highway was restored.

Issues for the House

1. **Long-duration occupation.** How should the principle in Amit Sahni (2020), that public ways cannot be occupied indefinitely, apply to a movement that lasts a year? Should the law set duration limits or require alternative sites?
2. **Sealing State borders.** Can a State lawfully prevent citizens from entering or passing through it to protest in the national capital, given the freedom of movement under Article 19(1)(d)?
3. **Centre–State coordination.** When protesters come from one State, are stopped by another and are heading for a Union Territory policed by the Union, who is responsible for negotiation, policing and compensation?
4. **Digital restrictions.** Were the internet suspensions and account-blocking orders proportionate, and how could such orders be made more transparent?
5. **Legislative consultation.** Would wider consultation and committee scrutiny of the 2020 laws have averted the agitation, and how should Parliament respond when its laws trigger mass protest?
6. **Violence and accountability.** How should deaths and injuries among protesters and police, and the resulting claims for compensation, be addressed?

10. Questions a Resolution Must Answer (QARMA)

Any Bill or resolution adopted by the House should, at a minimum, address the following questions. Members need not agree on the answers, but they should engage with each of them.

1. Should Section 163 of the BNSS be amended to require that every order be reasoned, published online and limited to a defined area and period, with a cap on consecutive renewals and independent review, or should its flexibility be preserved for emergencies?
2. Should India move from a permit regime to a notification regime for peaceful assemblies? Which locations or occasions, such as Parliament in session, justify prior authorisation, and who should decide?
3. Should Parliament enact a national framework on peaceful assembly and crowd management and, if so, under which constitutional route (Article 253, Article 252 or its Concurrent List power over criminal procedure), given that “police” and “public order” are State subjects?
4. What minimum standards should govern the use of force in every State and Union Territory: a graded response, limits on or a ban of pellet shotguns in crowd control, identification of personnel, body-worn cameras, access to medical aid and mandatory post-incident review?
5. How should internet and telecom suspensions be controlled: independent or judicial oversight, a public central database, stricter necessity tests, compensation and a preference for targeted measures?
6. How should the rights of residents, commuters, patients and traders be balanced with the right to protest? Should the law set duration limits, require accessible designated sites within sight and sound of the target audience, or regulate noise and traffic disruption?
7. Who should investigate allegations of police excess, particularly in Union Territories where the police report to the Union Government, and what roles should Police Complaints Authorities, human rights commissions and courts play?
8. What safeguards should apply when preventive detention, anti-terror and public-security laws and Section 152 of the BNS are used in the context of protests: periodic review, published data or sunset clauses?
9. How can police capacity be strengthened, including vacancies, training in crowd management, working hours and the welfare and safety of

personnel, and how can the Prakash Singh directives finally be implemented?

10. Should Union Territories without legislatures, or with limited control over their police, have special consultative mechanisms on public-order decisions?
11. How should protest-related criminal cases be handled so that genuinely violent acts are prosecuted while peaceful participants are not harassed, without the courts having to resort to extraordinary powers such as Article 142?
12. How can Parliament itself provide a channel for mass grievances, for example through time-bound hearings of large public petitions, so that disputes are resolved in the House rather than on the streets?

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12. Further Readings

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